

25VECV01231 25VECV01231

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25VECV01231 Berson v City of LA

[TENTATIVE] ORDER: Plaintiff Barbara Berson's Motion fir Trial

Preference is DENIED without prejudice.

Introduction

Plaintiff

Barbara Person (Plaintiff) moves for a trial preference.

Defendant

City of Los Angeles (Defendant) opposes.

Discussion

Plaintiff moves for a trial preference under Code of Civil Procedure section 36(a), and argues that she is 88 years old, has a substantial interest in the case as she is the plaintiff, and her health is such that a trial preference is necessary.

Plaintiff argues that due to the incident in this case, she underwent emergency surgery lasting over four hours on the same evening: right shoulder closed reduction, open reduction internal fixation of the right greater tuberosity with a plate and screws, right rotator cuff repair for a full-thickness supraspinatus tear discovered intraoperatively, and open reduction internal fixation of the left wrist with a volar locking plate, under general anesthesia with multiple peripheral nerve blocks. (Suarez Decl., par. 13.) Since then, she has endured more than thirty-four sessions of physical

therapy, a suspected rotator cuff re-tear requiring periodic injections for pain management, a new diagnosis of Type I diabetes requiring insulin four times daily, and the compounding burden of over a dozen serious pre-existing medical conditions. (Suarez Decl., pars. 17, 20, 23.) Her pre-existing conditions include hypertension, hyperlipidemia, hypothyroidism, osteoporosis, and chronic back pain managed by a spinal cord stimulator placed approximately one week before the incident. She had previously undergone surgeries on her back, bilateral hips, and bilateral knees. (Suarez Decl., para. 14.) She was also managing anxiety disorder, insomnia, gastroesophageal reflux disease, and sigmoid diverticulitis, each requiring ongoing medication. (Id.)

In the alternative, Plaintiff requests that the Court exercise its discretion to grant trial preference pursuant to Code of Civil Procedure sections 36, subdivisions (d) and/or (e).

Pursuant to Code of Civil Procedure section 36(a), "A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings:

(1) The party has a substantial interest in the action as a whole.

(2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation."

(Code Civ. Proc. Sec. 36(a).)

An affidavit submitted in support of section 36(a) "may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc. Sec. 36.5.)

"In its discretion, the court may also grant a motion for preference that is accompanied by clear and convincing medical documentation that concludes that one of the parties suffers from an illness or condition raising substantial medical doubt of survival of that party beyond six months, and that satisfies the court that the interests of justice will be served by granting the preference." (Code Civ. Proc. § 36(d).)

"Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the

court that the interests of justice will be served by granting this preference.” (Code Civ. Proc. § 36(e).)

Here, Plaintiff has not met her burden under CCP section 36(a) to show that her health is such that a preference is necessary to prevent prejudicing Plaintiff's interest. As Defendant notes in opposition, Plaintiff's evidence in the form of her attorney's declaration is devoid of facts and details regarding the prognosis

of Plaintiff's medical conditions. Thus, the evidence is not enough, without more detail, to show that the health of the party is such that a preference is necessary. Plaintiff's counsel cites to Code of Civil Procedure section 36.5 for the proposition that counsel's declaration is sufficient, but this section specifically states that the affidavit has to contain a medical prognosis of the party. (Code Civ. Proc. § 36.5.) The conditions on their own, while serious, do not show that Plaintiff is deteriorating at a rate that threatens her ability to participate in trial.

The present facts are readily distinguishable from those in *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, where trial preference should have been granted to an 81-year-old with (1) stage IV mesothelioma which had metastasized to the femur, clavicle, and spine, (2) asbestosis, (3) asbestos-related pleural disease, (4) severe coronary artery disease, (5) anemia, (6) whole body aches and pain, (7) severe abdominal and bowel complications, (8) nausea and vomiting, (9) dehydration, (10) drowsiness, (11) extreme weakness and fatigue, (12) chemotherapy-induced impairment to focus, concentration, and communication, (13) an extremely weak immune system, and (14) worsening side effects of the chemotherapy. (*Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 532.)

The Court thus finds that Plaintiff has not satisfied the requirements to support a claim for trial preference. The evidence currently presented does not suggest that Plaintiff's interests in the litigation will be prejudiced.

The Court also does not have clear and convincing medical documentation that concludes Plaintiff has an illness that raises a substantial medical doubt that she will survive beyond six months, and does not find the interests of justice will be served in order to grant the alternative relief requested.

Accordingly, the motion is DENIED without prejudice.

Alternatively, the record could be supplemented with more specific evidence of her prognoses of her various illnesses and injuries.

IT IS SO ORDERED, CLERK TO GIVE NOTICE.